

STATE OF NEW YORK

1891--A

2025-2026 Regular Sessions

IN SENATE

January 14, 2025

Introduced by Sens. JACKSON, PERSAUD -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to owner liability for failure of an operator to comply with street cleaning parking rules; to amend the public officers law, in relation to access to records prepared pursuant to street cleaning parking rules; and providing for the repeal of certain provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The vehicle and traffic law is amended by adding a new section 1111-j to read as follows:

§ 1111-j. Owner liability for failure of an operator to comply with street cleaning parking rules. (a) 1. Notwithstanding any other provision of law, the city of New York is hereby authorized to establish a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with posted street cleaning parking rules in such city in accordance with the provisions of this section. Such demonstration program shall empower the New York city department of sanitation to install street cleaning vehicle photo devices on street cleaning vehicles along street cleaning routes at locations determined by such department in such city and to administer such program in consultation with the New York city department of transportation.

2. Any photographs, microphotographs, videotape or other recorded images captured by street cleaning vehicle photo devices shall be inadmissible in any disciplinary proceeding convened by the department and any proceeding initiated by the department involving licensure privileges of street cleaning vehicle operators. Any street cleaning vehicle

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD05516-05-6

1 photo device mounted on a street cleaning vehicle shall be directed
2 outwardly from such vehicle to capture images of vehicles operated in
3 violation of street cleaning parking rules, and images produced by such
4 device shall not be used for any other purpose in the absence of a court
5 order requiring such images to be produced.

6 3. No street cleaning vehicle photo device shall be used unless on the
7 day it is to be used it has successfully passed a self-test of its func-
8 tions.

9 4. (i) The city of New York shall adopt and enforce measures to
10 protect the privacy of drivers, passengers, pedestrians and cyclists
11 whose identity and identifying information may be captured by a street
12 cleaning photo device. Such measures shall include:

13 (A) utilization of necessary technologies to ensure, to the extent
14 practicable, that photographs, microphotographs, videotape or other
15 recorded images produced by such street cleaning vehicle photo device
16 shall not include images that identify the driver, the passengers, or
17 the contents of the vehicle. Provided, however, that no notice
18 of liability issued pursuant to this section shall be dismissed solely
19 because such a photograph, microphotograph, videotape or other
20 recorded image allows for the identification of the driver, the passen-
21 gers, or the contents of vehicles where the city shows that it made
22 reasonable efforts to comply with the provisions of this paragraph in
23 such case; and

24 (B) oversight procedures to ensure compliance with the privacy
25 protection measures under this subdivision.

26 (ii) Photographs, microphotographs, videotape or any other recorded
27 image from a street cleaning vehicle photo device shall be for the
28 exclusive use of the city for the purpose of the adjudication of liabil-
29 ity imposed pursuant to this section and of the owner receiving a notice
30 of liability pursuant to this section, and shall be destroyed by the
31 city upon the final resolution of the notice of liability to which such
32 photographs, microphotographs, videotape or other recorded images
33 relate, or one year following the date of issuance of such notice of
34 liability, whichever is later. Notwithstanding the provisions of any
35 other law, rule or regulation to the contrary, photographs, microphoto-
36 graphs, videotape or any other recorded image from a street
37 cleaning vehicle photo device shall not be open to the public, nor
38 subject to civil or criminal process or discovery, nor used by any
39 court or administrative or adjudicatory body in any action or proceed-
40 ing therein except that which is necessary for the adjudication of a
41 notice of liability issued pursuant to this section, and no
42 public entity or employee, officer or agent thereof shall disclose
43 such information, except that such photographs, microphotographs,
44 videotape or any other recorded images from such devices:

45 (A) shall be available for inspection and copying and use by the motor
46 vehicle owner and operator for so long as such photographs, microphoto-
47 graphs, videotape or other recorded images are required to be maintained
48 or are maintained by such public entity, employee, officer or agent; and

49 (B) (1) shall be furnished when described in a search warrant issued
50 by a court authorized to issue such a search warrant pursuant to article
51 six hundred ninety of the criminal procedure law or a federal court
52 authorized to issue such a search warrant under federal law, where such
53 search warrant states that there is reasonable cause to believe such
54 information constitutes evidence of, or tends to demonstrate that, a
55 misdemeanor or felony offense was committed in this state or another
56 state, or that a particular person participated in the commission of a

1 misdemeanor or felony offense in this state or another state, provided,
2 however, that if such offense was against the laws of another state, the
3 court shall only issue a warrant if the conduct comprising such offense
4 would, if occurring in this state, constitute a misdemeanor or felony
5 against the laws of this state; and

6 (2) shall be furnished in response to a subpoena duces tecum signed by
7 a judge of competent jurisdiction and issued pursuant to article six
8 hundred ten of the criminal procedure law or a judge or magistrate of a
9 federal court authorized to issue such a subpoena duces tecum under
10 federal law, where the judge finds and the subpoena states that there is
11 reasonable cause to believe such information is relevant and material to
12 the prosecution, or the defense, or the investigation by an authorized
13 law enforcement official, of the alleged commission of a misdemeanor or
14 felony in this state or another state, provided, however, that if such
15 offense was against the laws of another state, such judge or magistrate
16 shall only issue such subpoena if the conduct comprising such offense
17 would, if occurring in this state, constitute a misdemeanor or felony in
18 this state; and

19 (3) may, if lawfully obtained pursuant to this clause and clause (A)
20 of this subparagraph and otherwise admissible, be used in such criminal
21 action or proceeding.

22 (iii) The demonstration program authorized pursuant to this section is
23 prohibited from utilizing and from arranging for the utilization of
24 biometric identifying technology, including but not limited to facial
25 recognition technology, for any purpose. The use, and the arrangement
26 for the use, of biometric identifying technology, including but not
27 limited to facial recognition technology, on photographs, microphoto-
28 graphs, videotape, or any other recorded image or data produced by a
29 street cleaning photo device, by any person for any purpose, are prohib-
30 ited. For purposes of this subparagraph, "person" shall include, but not
31 be limited to, a human being, a public or private corporation, an unin-
32 corporated association, a partnership, a government or a governmental
33 instrumentality, a court or an administrative or adjudicatory body, and
34 any employee, officer, and agent of the foregoing.

35 5. Every street cleaning vehicle upon which a street cleaning vehicle
36 photo device is installed and operated pursuant to a demonstration
37 program authorized pursuant to this section shall be equipped with
38 signs, placards or other displays giving notice to motor vehicle opera-
39 tors that street cleaning vehicle photo devices are used to enforce
40 street cleaning parking rules.

41 6. Warning notices of violation shall be issued during the first sixty
42 days that street cleaning vehicle photo devices pursuant to a demon-
43 stration program authorized by this section are active and in operation.

44 7. The city of New York shall adopt and enforce measures:

45 (i) to upgrade signage at regular intervals within street cleaning
46 routes stating that street cleaning vehicle photo devices are used to
47 enforce street cleaning parking rules along such routes; and

48 (ii) to prohibit the use or dissemination of vehicles' license plate
49 information and other information and images captured by street cleaning
50 vehicle photo devices except: (A) as required to establish liability
51 under this section or collect payment of penalties; (B) as required by
52 court order; or (C) as otherwise required by law.

53 (b) If the city of New York has established a program pursuant to
54 subdivision (a) of this section, the owner of a vehicle shall be liable
55 for a penalty imposed pursuant to this section if such vehicle was
56 parked in violation of any street cleaning parking rule of such city and

1 such violation is evidenced by information obtained from a street clean-
2 ing vehicle photo device.

3 (c) For purposes of this section, the following terms shall have the
4 following meanings:

5 1. "Biometric identifying technology" shall mean any tool using an
6 automated or semi-automated process that assists in verifying a person's
7 identity based on a person's biometric information.

8 2. "Biometric information" shall mean any measurable physical, physio-
9 logical or behavioral characteristics that are attributable to a person,
10 including but not limited to facial characteristics, fingerprint charac-
11 teristics, hand characteristics, eye characteristics, vocal character-
12 istics, and any other characteristics that can be used to identify a
13 person including, but not limited to: fingerprints; handprints; retina
14 and iris patterns; DNA sequence; voice; gait; and facial geometry.

15 3. "Facial recognition" shall mean any tool using an automated or
16 semiautomated process that assists in uniquely identifying or verifying
17 a person by comparing and analyzing patterns based on the person's face.

18 4. "Owner" shall have the meaning provided in article two-B of this
19 chapter.

20 5. "Street cleaning routes" shall mean street cleaning routes desig-
21 nated by the New York city department of sanitation that include
22 upgraded signage stating that street cleaning vehicle photo devices are
23 used to enforce street cleaning parking rules.

24 6. "Street cleaning parking rules" shall mean the prohibited parking
25 of any vehicle on one side of the street to allow for cleaning by the
26 New York city department of sanitation during designated time periods as
27 posted by sign pursuant to the rules of the New York city department of
28 transportation.

29 7. "Street cleaning vehicle" shall mean any vehicle operated by the
30 New York city department of sanitation that is designed to wash dirt and
31 grime, and remove litter and debris, from the street surface.

32 8. "Street cleaning vehicle photo device" shall mean a device that is
33 mounted on a street cleaning vehicle, is capable of operating independ-
34 ently of an enforcement officer and produces one or more images of each
35 vehicle at the time it is in violation of street cleaning parking rules.

36 (d) A certificate, sworn to or affirmed by a technician employed by
37 the city of New York in which the charged violation occurred, or a
38 facsimile thereof, based upon inspection of photographs, microphoto-
39 graphs, videotape or other recorded images produced by a street cleaning
40 vehicle photo device, shall be prima facie evidence of the facts
41 contained therein. Any photographs, microphotographs, videotape or other
42 recorded images evidencing such a violation shall be available for
43 inspection in any proceeding to adjudicate the liability for such
44 violation pursuant to this section.

45 (e) An owner liable for a violation of a street cleaning parking rule
46 imposed on any route shall be liable for monetary penalties in accord-
47 ance with a schedule of fines and penalties promulgated by the parking
48 violations bureau of the city of New York; provided, however, that the
49 monetary penalty for violating a street cleaning parking rule shall not
50 exceed fifty dollars for each violation; provided, further, that an
51 owner shall be liable for an additional penalty not to exceed twenty-
52 five dollars for each violation for the failure to respond to a notice
53 of liability within the prescribed time period.

54 (f) An imposition of liability under the demonstration program estab-
55 lished pursuant to this section shall not be deemed a conviction as an
56 operator and shall not be made part of the operating record of the

1 person upon whom such liability is imposed nor shall it be used for
2 insurance purposes in the provision of motor vehicle insurance coverage.

3 (g) 1. A notice of liability shall be sent by first class mail to each
4 person alleged to be liable as an owner for a violation of a street
5 cleaning parking rule. Personal delivery on the owner shall not be
6 required. A manual or automatic record of mailing prepared in the ordi-
7 nary course of business shall be prima facie evidence of the facts
8 contained therein.

9 2. A notice of liability shall contain the name and address of the
10 person alleged to be liable as an owner for violation of a street clean-
11 ing parking rule, the registration number of the vehicle involved in
12 such violation, the location where such violation took place including
13 the street or cross streets, one or more images identifying the
14 violation, the date and time of such violation and the identification
15 number of the street cleaning vehicle photo device that recorded the
16 violation or other document locator number.

17 3. The notice of liability shall contain information advising the
18 person charged of the manner and the time in which such person may
19 contest the liability alleged in the notice. Such notice of liability
20 shall also contain a warning to advise the person charged that failure
21 to contest in the manner and time provided shall be deemed an admission
22 of liability and that a default judgment may be entered thereon.

23 4. The notice of liability shall be prepared and mailed by an agency
24 or agencies designated by the city of New York, or any other entity
25 authorized by such city to prepare and mail such notification of
26 violation.

27 5. Adjudication of the liability imposed upon owners by this section
28 shall be by the New York city parking violations bureau.

29 (h) If an owner of a vehicle receives a notice of liability pursuant
30 to this section for any time period during which the vehicle was
31 reported to the police department as having been stolen, it shall be a
32 valid defense to an allegation of liability for violation of a street
33 cleaning parking rule of such city, that the vehicle had been reported
34 to the police as stolen prior to the time the violation occurred and had
35 not been recovered by such time. For purposes of asserting the defense
36 provided by this subdivision it shall be sufficient that a certified
37 copy of the police report on the stolen vehicle be sent by first class
38 mail to the parking violations bureau.

39 (i) 1. An owner who is a lessor of a vehicle to which a notice of
40 liability was issued pursuant to subdivision (g) of this section shall
41 not be liable for the violation of the street cleaning parking rule,
42 provided that:

43 (i) prior to the violation, the lessor has filed with such parking
44 violations bureau in accordance with the provisions of section two
45 hundred thirty-nine of this chapter; and

46 (ii) within thirty-seven days after receiving notice from such bureau
47 of the date and time of such liability, together with the other informa-
48 tion contained in the original notice of liability, the lessor submits
49 to such bureau the correct name and address of the lessee of the vehicle
50 identified in the notice of liability at the time of such violation,
51 together with such other additional information contained in the rental,
52 lease or other contract document, as may be reasonably required by such
53 bureau pursuant to regulations that may be promulgated for such purpose.

54 2. Failure to comply with subparagraph (ii) of paragraph one of this
55 subdivision shall render the lessor liable for the penalty prescribed in
56 this section.

3. Where the lessor complies with the provisions of paragraph one of this subdivision, the lessee of such vehicle on the date of such violation shall be deemed to be the owner of such vehicle for purposes of this section, shall be subject to liability for such violation pursuant to this section, and shall be sent a notice of liability pursuant to subdivision (g) of this section.

(j) 1. If the owner liable for a violation of a street cleaning parking rule pursuant to this section was not the operator of the vehicle at the time of such violation, the owner may maintain an action for indemnification against the operator.

2. Notwithstanding any other provision of this section, no owner of a vehicle shall be subject to a monetary fine imposed pursuant to this section if the operator of such vehicle was operating such vehicle without the consent of the owner at the time such operator failed to obey a street cleaning parking rule. For purposes of this subdivision there shall be a presumption that the operator of such vehicle was operating such vehicle with the consent of the owner at the time such operator failed to obey a street cleaning parking rule.

(k) Nothing in this section shall be construed to limit the liability of an operator of a vehicle for any violation of a street cleaning parking rule.

(l) If the city of New York adopts a demonstration program pursuant to subdivision (a) of this section, such city's department of sanitation shall submit a report on the results of the use of street cleaning parking rule-related photo devices to the governor, the temporary president of the senate, and the speaker of the assembly by April first, two thousand twenty-nine and every two years thereafter. The department of sanitation of the city of New York shall also make such reports available on their public-facing websites, provided that they may provide aggregate data from paragraph one of this subdivision if the city finds that publishing specific location data would jeopardize public safety. Such report shall include, but not be limited to:

1. a description of the locations and/or vehicles where street cleaning vehicle photo devices were used;

2. the total number of violations recorded on a monthly and annual basis;

3. the total number of notices of liability issued;

4. the number of fines and total amount of fines paid after the first notice of liability;

5. the number of violations adjudicated and results of such adjudications including breakdowns of dispositions made;

6. the total amount of revenue realized by such city and department;

7. the quality of the adjudication process and its results;

8. the total number of cameras;

9. the total cost to such city; and

10. an assessment by the New York city department of sanitation of the efficacy of the program in enabling such department to clean the city's streets.

(m) It shall be a defense to any prosecution for a violation of a street cleaning parking rule pursuant to a demonstration program adopted pursuant to this section that such street cleaning vehicle photo devices were malfunctioning at the time of the alleged violation.

§ 2. Subdivision 1 of section 235 of the vehicle and traffic law, as amended by section 1 of part N of chapter 58 of the laws of 2025, is amended to read as follows:

1 1. Notwithstanding any inconsistent provision of any general, special
2 or local law or administrative code to the contrary, in any city which
3 heretofore or hereafter is authorized to establish an administrative
4 tribunal: (a) to hear and determine complaints of traffic infractions
5 constituting parking, standing or stopping violations, or (b) to adjudi-
6 cate the liability of owners for violations of subdivision (d) of
7 section eleven hundred eleven of this chapter imposed pursuant to a
8 local law or ordinance imposing monetary liability on the owner of a
9 vehicle for failure of an operator thereof to comply with traffic-con-
10 trol indications through the installation and operation of traffic-con-
11 trol signal photo violation-monitoring systems, in accordance with arti-
12 cle twenty-four of this chapter, or (c) to adjudicate the liability of
13 owners for violations of subdivision (b), (c), (d), (f) or (g) of
14 section eleven hundred eighty of this chapter imposed pursuant to a
15 demonstration program imposing monetary liability on the owner of a
16 vehicle for failure of an operator thereof to comply with such posted
17 maximum speed limits through the installation and operation of photo
18 speed violation monitoring systems, in accordance with article thirty of
19 this chapter, or (d) to adjudicate the liability of owners for
20 violations of bus lane restrictions as defined by article twenty-four of
21 this chapter imposed pursuant to a bus rapid transit program imposing
22 monetary liability on the owner of a vehicle for failure of an operator
23 thereof to comply with such bus lane restrictions through the installa-
24 tion and operation of bus lane photo devices, in accordance with article
25 twenty-four of this chapter, or (e) to adjudicate the liability of
26 owners for violations of toll collection regulations imposed by certain
27 public authorities pursuant to the law authorizing such public authori-
28 ties to impose monetary liability on the owner of a vehicle for failure
29 of an operator thereof to comply with toll collection regulations of
30 such public authorities through the installation and operation of
31 photo-monitoring systems, in accordance with the provisions of section
32 two thousand nine hundred eighty-five of the public authorities law and
33 sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred
34 seventy-four of the laws of nineteen hundred fifty, or (f) to adjudicate
35 the liability of owners for violations of section eleven hundred seven-
36 ty-four of this chapter when meeting a school bus marked and equipped as
37 provided in subdivisions twenty and twenty-one-c of section three
38 hundred seventy-five of this chapter imposed pursuant to a local law or
39 ordinance imposing monetary liability on the owner of a vehicle for
40 failure of an operator thereof to comply with school bus red visual
41 signals through the installation and operation of school bus photo
42 violation monitoring systems, in accordance with article twenty-nine of
43 this chapter, or (g) to adjudicate the liability of owners for
44 violations of section three hundred eighty-five of this chapter and the
45 rules of the applicable covered agency or covered authority as such
46 terms are defined in article ten of this chapter in relation to gross
47 vehicle weight and/or axle weight violations imposed pursuant to a weigh
48 in motion demonstration program imposing monetary liability on the owner
49 of a vehicle for failure of an operator thereof to comply with such
50 gross vehicle weight and/or axle weight restrictions through the instal-
51 lation and operation of weigh in motion violation monitoring systems, in
52 accordance with article ten of this chapter, or (h) to adjudicate the
53 liability of owners for violations of subdivision (b), (d), (f) or (g)
54 of section eleven hundred eighty of this chapter imposed pursuant to a
55 demonstration program imposing monetary liability on the owner of a
56 vehicle for failure of an operator thereof to comply with such posted

1 maximum speed limits within a highway construction or maintenance work
2 area through the installation and operation of photo speed violation
3 monitoring systems, in accordance with article thirty of this chapter,
4 or (i) to adjudicate the liability of owners for violations of bus oper-
5 ation-related traffic regulations as defined by article twenty-four of
6 this chapter imposed pursuant to a demonstration program imposing mone-
7 tary liability on the owner of a vehicle for failure of an operator
8 thereof to comply with such bus operation-related traffic regulations
9 through the installation and operation of bus operation-related photo
10 devices, in accordance with article twenty-four of this chapter, or (j)
11 to adjudicate the liability of owners for violations of street cleaning
12 parking rules as defined by article twenty-four of this chapter imposed
13 pursuant to a program imposing monetary liability on the owner of a
14 vehicle for failure of an operator thereof to comply with such street
15 cleaning parking rules through the installation and operation of street
16 cleaning vehicle photo devices, in accordance with article twenty-four
17 of this chapter, such tribunal and the rules and regulations pertaining
18 thereto shall be constituted in substantial conformance with the follow-
19 ing sections.

20 § 3. Subdivision 1 of section 236 of the vehicle and traffic law, as
21 amended by section 2 of part N of chapter 58 of the laws of 2025, is
22 amended to read as follows:

23 1. Creation. In any city as hereinbefore or hereafter authorized such
24 tribunal when created shall be known as the parking violations bureau
25 and shall have jurisdiction of traffic infractions which constitute a
26 parking violation and, where authorized: (a) to adjudicate the liability
27 of owners for violations of subdivision (d) of section eleven hundred
28 eleven of this chapter imposed pursuant to a local law or ordinance
29 imposing monetary liability on the owner of a vehicle for failure of an
30 operator thereof to comply with traffic-control indications through the
31 installation and operation of traffic-control signal photo violation-
32 monitoring systems, in accordance with article twenty-four of this chap-
33 ter, or (b) to adjudicate the liability of owners for violations of
34 subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty
35 of this chapter imposed pursuant to a demonstration program imposing
36 monetary liability on the owner of a vehicle for failure of an operator
37 thereof to comply with such posted maximum speed limits through the
38 installation and operation of photo speed violation monitoring systems,
39 in accordance with article thirty of this chapter, or (c) to adjudicate
40 the liability of owners for violations of bus lane restrictions as
41 defined by article twenty-four of this chapter imposed pursuant to a bus
42 rapid transit program imposing monetary liability on the owner of a
43 vehicle for failure of an operator thereof to comply with such bus lane
44 restrictions through the installation and operation of bus lane photo
45 devices, in accordance with article twenty-four of this chapter, or (d)
46 to adjudicate the liability of owners for violations of toll collection
47 regulations imposed by certain public authorities pursuant to the law
48 authorizing such public authorities to impose monetary liability on the
49 owner of a vehicle for failure of an operator thereof to comply with
50 toll collection regulations of such public authorities through the
51 installation and operation of photo-monitoring systems, in accordance
52 with the provisions of section two thousand nine hundred eighty-five of
53 the public authorities law and sections sixteen-a, sixteen-b and
54 sixteen-c of chapter seven hundred seventy-four of the laws of nineteen
55 hundred fifty, or (e) to adjudicate the liability of owners for
56 violations of section eleven hundred seventy-four of this chapter when

1 meeting a school bus marked and equipped as provided in subdivisions
2 twenty and twenty-one-c of section three hundred seventy-five of this
3 chapter imposed pursuant to a local law or ordinance imposing monetary
4 liability on the owner of a vehicle for failure of an operator thereof
5 to comply with school bus red visual signals through the installation
6 and operation of school bus photo violation monitoring systems, in
7 accordance with article twenty-nine of this chapter, or (f) to adjudi-
8 cate the liability of owners for violations of section three hundred
9 eighty-five of this chapter and the rules of the applicable covered
10 agency or covered authority as such terms are defined in article ten of
11 this chapter in relation to gross vehicle weight and/or axle weight
12 violations imposed pursuant to a weigh in motion demonstration program
13 imposing monetary liability on the owner of a vehicle for failure of an
14 operator thereof to comply with such gross vehicle weight and/or axle
15 weight restrictions through the installation and operation of weigh in
16 motion violation monitoring systems, in accordance with article ten of
17 this chapter, or (g) to adjudicate the liability of owners for
18 violations of subdivision (b), (d), (f) or (g) of section eleven hundred
19 eighty of this chapter imposed pursuant to a demonstration program
20 imposing monetary liability on the owner of a vehicle for failure of an
21 operator thereof to comply with such posted maximum speed limits within
22 a highway construction or maintenance work area through the installation
23 and operation of photo speed violation monitoring systems, in accordance
24 with article thirty of this chapter, or (h) to adjudicate the liability
25 of owners for violations of bus operation-related traffic regulations as
26 defined by article twenty-four of this chapter imposed pursuant to a
27 demonstration program imposing monetary liability on the owner of a
28 vehicle for failure of an operator thereof to comply with such bus oper-
29 ation-related traffic regulations through the installation and operation
30 of bus operation-related photo devices, in accordance with article twen-
31 ty-four of this chapter, or (i) to adjudicate the liability of owners
32 for violations of street cleaning parking rules as defined by article
33 twenty-four of this chapter imposed pursuant to a program imposing mone-
34 tary liability on the owner of a vehicle for failure of an operator
35 thereof to comply with such street cleaning parking rules through the
36 installation and operation of street cleaning vehicle photo devices, in
37 accordance with article twenty-four of this chapter. Such tribunal,
38 except in a city with a population of one million or more, shall also
39 have jurisdiction of abandoned vehicle violations. For the purposes of
40 this article, a parking violation is the violation of any law, rule or
41 regulation providing for or regulating the parking, stopping or standing
42 of a vehicle. In addition for purposes of this article, "commissioner"
43 shall mean and include the commissioner of traffic of the city or an
44 official possessing authority as such a commissioner.

45 § 4. Paragraph f of subdivision 1 of section 239 of the vehicle and
46 traffic law, as amended by section 3 of part N of chapter 58 of the laws
47 of 2025, is amended to read as follows:

48 f. "Notice of violation" means a notice of violation as defined in
49 subdivision nine of section two hundred thirty-seven of this article,
50 but shall not be deemed to include a notice of liability issued pursuant
51 to authorization set forth in articles ten, twenty-four, twenty-nine and
52 thirty of this chapter, section two thousand nine hundred eighty-five of
53 the public authorities law and sections sixteen-a, sixteen-b and
54 sixteen-c of chapter seven hundred seventy-four of the laws of nineteen
55 hundred fifty to impose monetary liability on the owner of a vehicle for
56 failure of an operator thereof: to comply with traffic-control indi-

1 cations in violation of subdivision (d) of section eleven hundred eleven
2 of this chapter through the installation and operation of traffic-con-
3 trol signal photo violation-monitoring systems, in accordance with arti-
4 cle twenty-four of this chapter; or to comply with certain posted maxi-
5 mum speed limits in violation of subdivision (b), (c), (d), (f) or (g)
6 of section eleven hundred eighty of this chapter through the installa-
7 tion and operation of photo speed violation monitoring systems, in
8 accordance with article thirty of this chapter; or to comply with bus
9 lane restrictions as defined by article twenty-four of this chapter
10 through the installation and operation of bus lane photo devices, in
11 accordance with article twenty-four of this chapter; or to comply with
12 toll collection regulations of certain public authorities through the
13 installation and operation of photo-monitoring systems, in accordance
14 with the provisions of section two thousand nine hundred eighty-five of
15 the public authorities law and sections sixteen-a, sixteen-b and
16 sixteen-c of chapter seven hundred seventy-four of the laws of nineteen
17 hundred fifty; or to stop for a school bus displaying a red visual
18 signal in violation of section eleven hundred seventy-four of this chap-
19 ter through the installation and operation of school bus photo violation
20 monitoring systems, in accordance with article twenty-nine of this chap-
21 ter; or to comply with certain posted maximum speed limits in violation
22 of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of
23 this chapter within a highway construction or maintenance work area
24 through the installation and operation of photo speed violation monitor-
25 ing systems, in accordance with article thirty of this chapter; or to
26 comply with gross vehicle weight and/or axle weight restrictions in
27 violation of section three hundred eighty-five of this chapter and the
28 rules of the applicable covered agency or covered authority as such
29 terms are defined in article ten of this chapter through the installa-
30 tion and operation of weigh in motion violation monitoring systems, in
31 accordance with article ten of this chapter; or to comply with bus oper-
32 ation-related traffic regulations as defined by article twenty-four of
33 this chapter in violation of the rules of the department of transporta-
34 tion of the city of New York through the installation and operation of
35 bus operation-related photo devices, in accordance with article twenty-
36 four of this chapter; or to comply with street cleaning parking rules as
37 defined by article twenty-four of this chapter through the installation
38 and operation of street cleaning vehicle photo devices, in accordance
39 with article twenty-four of this chapter.

40 § 5. Subdivisions 1, 1-a and the opening paragraph of paragraph (a) of
41 subdivision 1-b of section 240 of the vehicle and traffic law, subdivi-
42 sions 1 and 1-a as amended by section 4 of part N of chapter 58 of the
43 laws of 2025, and the opening paragraph of paragraph (a) of subdivision
44 1-b as amended by section 5 of part MM of chapter 56 of the laws of
45 2023, are amended to read as follows:

46 1. Notice of hearing. Whenever a person charged with a parking
47 violation enters a plea of not guilty; or a person alleged to be liable
48 in accordance with any provisions of law specifically authorizing the
49 imposition of monetary liability on the owner of a vehicle for failure
50 of an operator thereof: to comply with traffic-control indications in
51 violation of subdivision (d) of section eleven hundred eleven of this
52 chapter through the installation and operation of traffic-control signal
53 photo violation-monitoring systems, in accordance with article twenty-
54 four of this chapter; or to comply with certain posted maximum speed
55 limits in violation of subdivision (b), (c), (d), (f) or (g) of section
56 eleven hundred eighty of this chapter through the installation and oper-

1 ation of photo speed violation monitoring systems, in accordance with
2 article thirty of this chapter; or to comply with bus lane restrictions
3 as defined by article twenty-four of this chapter through the installa-
4 tion and operation of bus lane photo devices, in accordance with article
5 twenty-four of this chapter; or to comply with toll collection regu-
6 lations of certain public authorities through the installation and oper-
7 ation of photo-monitoring systems, in accordance with the provisions of
8 section two thousand nine hundred eighty-five of the public authorities
9 law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven
10 hundred seventy-four of the laws of nineteen hundred fifty; or to stop
11 for a school bus displaying a red visual signal in violation of section
12 eleven hundred seventy-four of this chapter through the installation and
13 operation of school bus photo violation monitoring systems, in accord-
14 ance with article twenty-nine of this chapter; or to comply with certain
15 posted maximum speed limits in violation of subdivision (b), (d), (f) or
16 (g) of section eleven hundred eighty of this chapter within a highway
17 construction or maintenance work area through the installation and oper-
18 ation of photo speed violation monitoring systems, in accordance with
19 article thirty of this chapter; or to comply with gross vehicle weight
20 and/or axle weight restrictions in violation of section three hundred
21 eighty-five of this chapter and the rules of the applicable covered
22 agency or covered authority as such terms are defined in article ten of
23 this chapter through the installation and operation of weigh in motion
24 violation monitoring systems, in accordance with article ten of this
25 chapter; or to comply with bus operation-related traffic regulations as
26 defined by article twenty-four of this chapter in violation of the rules
27 of the department of transportation of the city of New York through the
28 installation and operation of bus operation-related photo devices, in
29 accordance with article twenty-four of this chapter; or to comply with
30 street cleaning parking rules as defined by article twenty-four of this
31 chapter through the installation and operation of street cleaning vehi-
32 cle photo devices, in accordance with article twenty-four of this chap-
33 ter, contests such allegation, the bureau shall advise such person
34 personally by such form of first class mail as the director may direct
35 of the date on which such person must appear to answer the charge at a
36 hearing. The form and content of such notice of hearing shall be
37 prescribed by the director, and shall contain a warning to advise the
38 person so pleading or contesting that failure to appear on the date
39 designated, or on any subsequent adjourned date, shall be deemed an
40 admission of liability, and that a default judgment may be entered ther-
41 eon.

42 1-a. Fines and penalties. Whenever a plea of not guilty has been
43 entered, or the bureau has been notified that an allegation of liability
44 in accordance with provisions of law specifically authorizing the im-
45 position of monetary liability on the owner of a vehicle for failure of an
46 operator thereof: to comply with traffic-control indications in
47 violation of subdivision (d) of section eleven hundred eleven of this
48 chapter through the installation and operation of traffic-control signal
49 photo violation-monitoring systems, in accordance with article twenty-
50 four of this chapter; or to comply with certain posted maximum speed
51 limits in violation of subdivision (b), (c), (d), (f) or (g) of section
52 eleven hundred eighty of this chapter through the installation and oper-
53 ation of photo speed violation monitoring systems, in accordance with
54 article thirty of this chapter; or to comply with bus lane restrictions
55 as defined by article twenty-four of this chapter through the installa-
56 tion and operation of bus lane photo devices, in accordance with article

twenty-four of this chapter; or to comply with toll collection regulations of certain public authorities through the installation and operation of photo-monitoring systems, in accordance with the provisions of section two thousand nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty; or to stop for a school bus displaying a red visual signal in violation of section eleven hundred seventy-four of this chapter through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter; or to comply with certain posted maximum speed limits in violation of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter within a highway construction or maintenance work area through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or to comply with gross vehicle weight and/or axle weight restrictions in violation of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter; or to comply with bus operation-related traffic regulations as defined by article twenty-four of this chapter in violation of the rules of the department of transportation of the city of New York through the installation and operation of bus operation-related photo devices, in accordance with article twenty-four of this chapter, or to comply with street cleaning parking rules as defined by article twenty-four of this chapter through the installation and operation of street cleaning vehicle photo devices, in accordance with article twenty-four of this chapter, is being contested, by a person in a timely fashion and a hearing upon the merits has been demanded, but has not yet been held, the bureau shall not issue any notice of fine or penalty to that person prior to the date of the hearing.

In a city having a population of one million or more, at every hearing for the adjudication of a notice of liability, as provided by this article, there shall be a rebuttable presumption that the owner of a first-response emergency vehicle alleged to be liable in accordance with any provisions of law specifically authorizing the imposition of monetary liability on the owner of a vehicle for failure of an operator thereof: to comply with traffic-control indications in violation of subdivision (d) of section eleven hundred eleven of this chapter through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter; or to comply with certain posted maximum speed limits in violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chapter through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or to comply with bus lane restrictions as defined by article twenty-four of this chapter through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; or to comply with bus operation-related traffic regulations as defined by article twenty-four of this chapter in violation of the rules of the department of transportation of the city of New York through the installation and operation of bus operation-related photo devices, in accordance with article twenty-four of this chapter; or to comply with street cleaning parking rules as defined by article twenty-four of this chapter through the installation and operation of street cleaning

1 vehicle photo devices, in accordance with article twenty-four of this
2 chapter is not liable for such alleged violation if such owner of the
3 first-response emergency vehicle provides the hearing officer with:

4 § 6. Paragraphs a and g of subdivision 2 of section 240 of the vehicle
5 and traffic law, as amended by section 5 of part N of chapter 58 of the
6 laws of 2025, are amended to read as follows:

7 a. Every hearing for the adjudication of a charge of parking violation
8 or an allegation of liability of an owner for a violation of subdivision
9 (d) of section eleven hundred eleven of this chapter imposed pursuant to
10 a local law or ordinance imposing monetary liability on the owner of a
11 vehicle for failure of an operator thereof to comply with traffic-con-
12 trol indications through the installation and operation of traffic-con-
13 trol signal photo violation-monitoring systems, in accordance with arti-
14 cle twenty-four of this chapter, or an allegation of liability of an
15 owner for a violation of subdivision (b), (c), (d), (f) or (g) of
16 section eleven hundred eighty of this chapter imposed pursuant to a
17 demonstration program imposing monetary liability on the owner of a
18 vehicle for failure of an operator thereof to comply with certain posted
19 maximum speed limits through the installation and operation of photo
20 speed violation monitoring systems, in accordance with article thirty of
21 this chapter, or an allegation of liability of an owner for a violation
22 of bus lane restrictions as defined by article twenty-four of this chap-
23 ter imposed pursuant to a bus rapid transit program imposing monetary
24 liability on the owner of a vehicle for failure of an operator thereof
25 to comply with such bus lane restrictions through the installation and
26 operation of bus lane photo devices, in accordance with article twenty-
27 four of this chapter, or an allegation of liability of an owner for a
28 violation of toll collection regulations imposed by certain public
29 authorities pursuant to the law authorizing such public authorities to
30 impose monetary liability on the owner of a vehicle for failure of an
31 operator thereof to comply with toll collection regulations of such
32 public authorities through the installation and operation of photo-moni-
33 toring systems, in accordance with the provisions of section two thou-
34 sand nine hundred eighty-five of the public authorities law and sections
35 sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four
36 of the laws of nineteen hundred fifty, or an allegation of liability of
37 an owner for a violation of section eleven hundred seventy-four of this
38 chapter when meeting a school bus marked and equipped as provided in
39 subdivisions twenty and twenty-one-c of section three hundred seventy-
40 five of this chapter imposed pursuant to a local law or ordinance impos-
41 ing monetary liability on the owner of a vehicle for failure of an oper-
42 ator thereof to comply with school bus red visual signals through the
43 installation and operation of school bus photo violation monitoring
44 systems, in accordance with article twenty-nine of this chapter, or an
45 allegation of liability of an owner for a violation of subdivision (b),
46 (d), (f) or (g) of section eleven hundred eighty of this chapter imposed
47 pursuant to a demonstration program imposing monetary liability on the
48 owner of a vehicle for failure of an operator thereof to comply with
49 certain posted maximum speed limits within a highway construction or
50 maintenance work area through the installation and operation of photo
51 speed violation monitoring systems, in accordance with article thirty of
52 this chapter, or an allegation of liability of an owner for a violation
53 of section three hundred eighty-five of this chapter and the rules of
54 the applicable covered agency or covered authority as such terms are
55 defined in article ten of this chapter in relation to gross vehicle
56 weight and/or axle weight violations imposed pursuant to a weigh in

1 motion demonstration program imposing monetary liability on the owner of
2 a vehicle for failure of an operator thereof to comply with such gross
3 vehicle weight and/or axle weight restrictions through the installation
4 and operation of weigh in motion violation monitoring systems, in
5 accordance with article ten of this chapter, or an allegation of liability
6 of an owner for a violation of bus operation-related traffic regulations
7 as defined by article twenty-four of this chapter imposed pursuant
8 to a demonstration program imposing monetary liability on the owner
9 of a vehicle for failure of an operator thereof to comply with such bus
10 operation-related traffic regulations through the installation and operation
11 of bus operation-related photo devices, in accordance with article
12 twenty-four of this chapter, or an allegation of liability of an owner
13 for a violation of street cleaning parking rules as defined by article
14 twenty-four of this chapter imposed pursuant to a program imposing monetary
15 liability on the owner of a vehicle for failure of an operator
16 thereof to comply with such street cleaning parking rules through the
17 installation and operation of street cleaning vehicle photo devices, in
18 accordance with article twenty-four of this chapter, shall be held
19 before a hearing examiner in accordance with rules and regulations
20 promulgated by the bureau.

21 g. A record shall be made of a hearing on a plea of not guilty or of a
22 hearing at which liability in accordance with any provisions of law
23 specifically authorizing the imposition of monetary liability on the
24 owner of a vehicle for failure of an operator thereof: to comply with
25 traffic-control indications in violation of subdivision (d) of section
26 eleven hundred eleven of this chapter through the installation and operation
27 of traffic-control signal photo violation-monitoring systems, in
28 accordance with article twenty-four of this chapter; to comply with
29 certain posted maximum speed limits in violation of subdivision (b),
30 (c), (d), (f) or (g) of section eleven hundred eighty of this chapter
31 through the installation and operation of photo speed violation monitoring
32 systems, in accordance with article thirty of this chapter; to
33 comply with bus lane restrictions as defined by article twenty-four of
34 this chapter through the installation and operation of bus lane photo
35 devices, in accordance with article twenty-four of this chapter; to
36 comply with toll collection regulations of certain public authorities
37 through the installation and operation of photo-monitoring systems, in
38 accordance with the provisions of section two thousand nine hundred
39 eighty-five of the public authorities law and sections sixteen-a,
40 sixteen-b and sixteen-c of chapter seven hundred seventy-four of the
41 laws of nineteen hundred fifty; to stop for a school bus displaying a
42 red visual signal in violation of section eleven hundred seventy-four of
43 this chapter through the installation and operation of school bus photo
44 violation monitoring systems, in accordance with article twenty-nine of
45 this chapter; to comply with certain posted maximum speed limits in
46 violation of subdivision (b), (d), (f) or (g) of section eleven hundred
47 eighty of this chapter within a highway construction or maintenance work
48 area through the installation and operation of photo speed violation
49 monitoring systems, in accordance with article thirty of this chapter;
50 to comply with gross vehicle weight and/or axle weight restrictions in
51 violation of section three hundred eighty-five of this chapter and the
52 rules of the applicable covered agency or covered authority as such
53 terms are defined in article ten of this chapter through the installation
54 and operation of weigh in motion violation monitoring systems, in
55 accordance with article ten of this chapter; or to comply with bus operation-
56 related traffic regulations as defined by article twenty-four of

1 this chapter in violation of the rules of the department of transporta-
2 tion of the city of New York through the installation and operation of
3 bus operation-related photo devices, in accordance with article twenty-
4 four of this chapter; or to comply with street cleaning parking rules as
5 defined by article twenty-four of this chapter through the installation
6 and operation of street cleaning vehicle photo devices, in accordance
7 with article twenty-four of this chapter, is contested. Recording
8 devices may be used for the making of the record.

9 § 7. Subdivisions 1 and 2 of section 241 of the vehicle and traffic
10 law, as amended by section 6 of part N of chapter 58 of the laws of
11 2025, are amended to read as follows:

12 1. The hearing examiner shall make a determination on the charges,
13 either sustaining or dismissing them. Where the hearing examiner deter-
14 mines that the charges have been sustained such hearing examiner may
15 examine either the prior parking violations record or the record of
16 liabilities incurred in accordance with any provisions of law specif-
17 ically authorizing the imposition of monetary liability on the owner of
18 a vehicle for failure of an operator thereof: to comply with traffic-
19 control indications in violation of subdivision (d) of section eleven
20 hundred eleven of this chapter through the installation and operation of
21 traffic-control signal photo violation-monitoring systems, in accordance
22 with article twenty-four of this chapter; to comply with certain posted
23 maximum speed limits in violation of subdivision (b), (c), (d), (f) or
24 (g) of section eleven hundred eighty of this chapter through the instal-
25 lation and operation of photo speed violation monitoring systems, in
26 accordance with article thirty of this chapter; to comply with bus lane
27 restrictions as defined by article twenty-four of this chapter through
28 the installation and operation of bus lane photo devices, in accordance
29 with article twenty-four of this chapter; to comply with toll collection
30 regulations of certain public authorities through the installation and
31 operation of photo-monitoring systems, in accordance with the provisions
32 of section two thousand nine hundred eighty-five of the public authori-
33 ties law and sections sixteen-a, sixteen-b and sixteen-c of chapter
34 seven hundred seventy-four of the laws of nineteen hundred fifty; to
35 stop for a school bus displaying a red visual signal in violation of
36 section eleven hundred seventy-four of this chapter through the instal-
37 lation and operation of school bus photo violation monitoring systems,
38 in accordance with article twenty-nine of this chapter; to comply with
39 certain posted maximum speed limits in violation of subdivision (b),
40 (d), (f) or (g) of section eleven hundred eighty of this chapter within
41 a highway construction or maintenance work area through the installation
42 and operation of photo speed violation monitoring systems, in accordance
43 with article thirty of this chapter; to comply with gross vehicle weight
44 and/or axle weight restrictions in violation of section three hundred
45 eighty-five of this chapter and the rules of the applicable covered
46 agency or covered authority as such terms are defined in article ten of
47 this chapter through the installation and operation of weigh in motion
48 violation monitoring systems, in accordance with article ten of this
49 chapter; ~~[or]~~ to comply with bus operation-related traffic regulations
50 as defined by article twenty-four of this chapter in violation of the
51 rules of the department of transportation of the city of New York
52 through the installation and operation of bus operation-related photo
53 devices, in accordance with article twenty-four of this chapter; or to
54 comply with street cleaning parking rules as defined by article twenty-
55 four of this chapter through the installation and operation of street
56 cleaning vehicle photo devices, in accordance with article twenty-four

1 of this chapter, of the person charged, as applicable prior to rendering
2 a final determination. Final determinations sustaining or dismissing
3 charges shall be entered on a final determination roll maintained by the
4 bureau together with records showing payment and nonpayment of penal-
5 ties.

6 2. Where an operator or owner fails to enter a plea to a charge of a
7 parking violation or contest an allegation of liability in accordance
8 with any provisions of law specifically authorizing the imposition of
9 monetary liability on the owner of a vehicle for failure of an operator
10 thereof: to comply with traffic-control indications in violation of
11 subdivision (d) of section eleven hundred eleven of this chapter through
12 the installation and operation of traffic-control signal photo viola-
13 tion-monitoring systems, in accordance with article twenty-four of this
14 chapter; to comply with certain posted maximum speed limits in violation
15 of subdivision (b), (c), (d), (f) or (g) of section eleven hundred
16 eighty of this chapter through the installation and operation of photo
17 speed violation monitoring systems, in accordance with article thirty of
18 this chapter; to comply with bus lane restrictions as defined by article
19 twenty-four of this chapter through the installation and operation of
20 bus lane photo devices, in accordance with article twenty-four of this
21 chapter; to comply with toll collection regulations of certain public
22 authorities through the installation and operation of photo-monitoring
23 systems, in accordance with the provisions of section two thousand nine
24 hundred eighty-five of the public authorities law and sections
25 sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four
26 of the laws of nineteen hundred fifty; to stop for a school bus display-
27 ing a red visual signal in violation of section eleven hundred seventy-
28 four of this chapter through the installation and operation of school
29 bus photo violation monitoring systems, in accordance with article twen-
30 ty-nine of this chapter; to comply with certain posted maximum speed
31 limits in violation of subdivision (b), (d), (f) or (g) of section elev-
32 en hundred eighty of this chapter within a highway construction or main-
33 tenance work area through the installation and operation of photo speed
34 violation monitoring systems, in accordance with article thirty of this
35 chapter; to comply with gross vehicle weight and/or axle weight
36 restrictions in violation of section three hundred eighty-five of this
37 chapter and the rules of the applicable covered agency or covered
38 authority as such terms are defined in article ten of this chapter
39 through the installation and operation of weigh in motion violation
40 monitoring systems, in accordance with article ten of this chapter; ~~or~~
41 to comply with bus operation-related traffic regulations as defined by
42 article twenty-four of this chapter in violation of the rules of the
43 department of transportation of the city of New York through the instal-
44 lation and operation of bus operation-related photo devices, in accord-
45 ance with article twenty-four of this chapter; or to comply with street
46 cleaning parking rules as defined by article twenty-four of this chapter
47 through the installation and operation of street cleaning vehicle photo
48 devices, in accordance with article twenty-four of this chapter, or
49 fails to appear on a designated hearing date or subsequent adjourned
50 date or fails after a hearing to comply with the determination of a
51 hearing examiner, as prescribed by this article or by rule or regulation
52 of the bureau, such failure to plead or contest, appear or comply shall
53 be deemed, for all purposes, an admission of liability and shall be
54 grounds for rendering and entering a default judgment in an amount
55 provided by the rules and regulations of the bureau. However, after the
56 expiration of the original date prescribed for entering a plea and

1 before a default judgment may be rendered, in such case the bureau shall
2 pursuant to the applicable provisions of law notify such operator or
3 owner, by such form of first class mail as the commission may direct;
4 (1) of the violation charged, or liability alleged in accordance with
5 any provisions of law specifically authorizing the imposition of mone-
6 tary liability on the owner of a vehicle for failure of an operator
7 thereof: to comply with traffic-control indications in violation of
8 subdivision (d) of section eleven hundred eleven of this chapter through
9 the installation and operation of traffic-control signal photo viola-
10 tion-monitoring systems, in accordance with article twenty-four of this
11 chapter; to comply with certain posted maximum speed limits in violation
12 of subdivision (b), (c), (d), (f) or (g) of section eleven hundred
13 eighty of this chapter through the installation and operation of photo
14 speed violation monitoring systems, in accordance with article thirty of
15 this chapter; to comply with bus lane restrictions as defined by article
16 twenty-four of this chapter through the installation and operation of
17 bus lane photo devices, in accordance with article twenty-four of this
18 chapter; to comply with toll collection regulations of certain public
19 authorities through the installation and operation of photo-monitoring
20 systems, in accordance with the provisions of section two thousand nine
21 hundred eighty-five of the public authorities law and sections
22 sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four
23 of the laws of nineteen hundred fifty; to stop for a school bus display-
24 ing a red visual signal in violation of section eleven hundred seventy-
25 four of this chapter through the installation and operation of school
26 bus photo violation monitoring systems, in accordance with article twen-
27 ty-nine of this chapter; to comply with certain posted maximum speed
28 limits in violation of subdivision (b), (d), (f) or (g) of section elev-
29 en hundred eighty of this chapter within a highway construction or main-
30 tenance work area through the installation and operation of photo speed
31 violation monitoring systems, in accordance with article thirty of this
32 chapter; to comply with gross vehicle weight and/or axle weight
33 restrictions in violation of section three hundred eighty-five of this
34 chapter and the rules of the applicable covered agency or covered
35 authority as such terms are defined in article ten of this chapter
36 through the installation and operation of weigh in motion violation
37 monitoring systems, in accordance with article ten of this chapter; ~~[or]~~
38 to comply with bus operation-related traffic regulations as defined by
39 article twenty-four of this chapter in violation of the rules of the
40 department of transportation of the city of New York through the instal-
41 lation and operation of bus operation-related photo devices, in accord-
42 ance with article twenty-four of this chapter; or to comply with street
43 cleaning parking rules as defined by article twenty-four of this chapter
44 through the installation and operation of street cleaning vehicle photo
45 devices, in accordance with article twenty-four of this chapter, (2) of
46 the impending default judgment, (3) that such judgment will be entered
47 in the Civil Court of the city in which the bureau has been established,
48 or other court of civil jurisdiction or any other place provided for the
49 entry of civil judgments within the state of New York, and (4) that a
50 default may be avoided by entering a plea or contesting an allegation of
51 liability in accordance with any provisions of law specifically author-
52 izing the imposition of monetary liability on the owner of a vehicle for
53 failure of an operator thereof: to comply with traffic-control indi-
54 cations in violation of subdivision (d) of section eleven hundred eleven
55 of this chapter through the installation and operation of traffic-con-
56 trol signal photo violation-monitoring systems, in accordance with arti-

1 cle twenty-four of this chapter; to comply with certain posted maximum
2 speed limits in violation of subdivision (b), (c), (d), (f) or (g) of
3 section eleven hundred eighty of this chapter through the installation
4 and operation of photo speed violation monitoring systems, in accordance
5 with article thirty of this chapter; to comply with bus lane
6 restrictions as defined by article twenty-four of this chapter through
7 the installation and operation of bus lane photo devices, in accordance
8 with article twenty-four of this chapter; to comply with toll collection
9 regulations of certain public authorities through the installation and
10 operation of photo-monitoring systems, in accordance with the provisions
11 of section two thousand nine hundred eighty-five of the public authori-
12 ties law and sections sixteen-a, sixteen-b and sixteen-c of chapter
13 seven hundred seventy-four of the laws of nineteen hundred fifty; to
14 stop for a school bus displaying a red visual signal in violation of
15 section eleven hundred seventy-four of this chapter through the instal-
16 lation and operation of school bus photo violation monitoring systems,
17 in accordance with article twenty-nine of this chapter; to comply with
18 certain posted maximum speed limits in violation of subdivision (b),
19 (d), (f) or (g) of section eleven hundred eighty of this chapter within
20 a highway construction or maintenance work area through the installation
21 and operation of photo speed violation monitoring systems, in accordance
22 with article thirty of this chapter; to comply with gross vehicle weight
23 and/or axle weight restrictions in violation of section three hundred
24 eighty-five of this chapter and the rules of the applicable covered
25 agency or covered authority as such terms are defined in article ten of
26 this chapter through the installation and operation of weigh in motion
27 violation monitoring systems, in accordance with article ten of this
28 chapter; ~~[or]~~ to comply with bus operation-related traffic regulations
29 as defined by article twenty-four of this chapter in violation of the
30 rules of the department of transportation of the city of New York
31 through the installation and operation of bus operation-related photo
32 devices, in accordance with article twenty-four of this chapter; or to
33 comply with street cleaning parking rules as defined by article twenty-
34 four of this chapter through the installation and operation of street
35 cleaning vehicle photo devices, in accordance with article twenty-four
36 of this chapter; or making an appearance within thirty days of the send-
37 ing of such notice. Pleas entered and allegations contested within that
38 period shall be in the manner prescribed in the notice and not subject
39 to additional penalty or fee. Such notice of impending default judgment
40 shall not be required prior to the rendering and entry thereof in the
41 case of operators or owners who are non-residents of the state of New
42 York. In no case shall a default judgment be rendered or, where
43 required, a notice of impending default judgment be sent, more than two
44 years after the expiration of the time prescribed for entering a plea or
45 contesting an allegation. When a person has demanded a hearing, no fine
46 or penalty shall be imposed for any reason, prior to the holding of the
47 hearing. If the hearing examiner shall make a determination on the
48 charges, sustaining them, such hearing examiner shall impose no greater
49 penalty or fine than those upon which the person was originally charged.

50 § 8. Subparagraph (i) of paragraph a of subdivision 5-a of section 401
51 of the vehicle and traffic law, as amended by section 7 of part N of
52 chapter 58 of the laws of 2025, is amended to read as follows:

53 (i) If at the time of application for a registration or renewal there-
54 of there is a certification from a court, parking violations bureau,
55 traffic and parking violations agency or administrative tribunal of
56 appropriate jurisdiction that the registrant or their representative

1 failed to appear on the return date or any subsequent adjourned date or
2 failed to comply with the rules and regulations of an administrative
3 tribunal following entry of a final decision in response to a total of
4 three or more summonses or other process in the aggregate, issued within
5 an eighteen month period, charging either that: (i) such motor vehicle
6 was parked, stopped or standing, or that such motor vehicle was operated
7 for hire by the registrant or their agent without being licensed as a
8 motor vehicle for hire by the appropriate local authority, in violation
9 of any of the provisions of this chapter or of any law, ordinance, rule
10 or regulation made by a local authority; or (ii) the registrant was
11 liable for a violation of subdivision (d) of section eleven hundred
12 eleven of this chapter imposed pursuant to a local law or ordinance
13 imposing monetary liability on the owner of a vehicle for failure of an
14 operator thereof to comply with traffic-control indications through the
15 installation and operation of traffic-control signal photo violation-
16 monitoring systems, in accordance with article twenty-four of this chap-
17 ter; or (iii) the registrant was liable for a violation of subdivision
18 (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chap-
19 ter imposed pursuant to a demonstration program imposing monetary
20 liability on the owner of a vehicle for failure of an operator thereof
21 to comply with such posted maximum speed limits through the installation
22 and operation of photo speed violation monitoring systems, in accordance
23 with article thirty of this chapter; or (iv) the registrant was liable
24 for a violation of bus lane restrictions as defined by article twenty-
25 four of this chapter imposed pursuant to a bus rapid transit program
26 imposing monetary liability on the owner of a vehicle for failure of an
27 operator thereof to comply with such bus lane restrictions through the
28 installation and operation of bus lane photo devices, in accordance with
29 article twenty-four of this chapter; or (v) the registrant was liable
30 for a violation of section eleven hundred seventy-four of this chapter
31 when meeting a school bus marked and equipped as provided in subdivi-
32 sions twenty and twenty-one-c of section three hundred seventy-five of
33 this chapter imposed pursuant to a local law or ordinance imposing mone-
34 tary liability on the owner of a vehicle for failure of an operator
35 thereof to comply with school bus red visual signals through the instal-
36 lation and operation of school bus photo violation monitoring systems,
37 in accordance with article twenty-nine of this chapter; or (vi) the
38 registrant was liable for a violation of section three hundred eighty-
39 five of this chapter and the rules of the applicable covered agency or
40 covered authority as such terms are defined in article ten of this chap-
41 ter in relation to gross vehicle weight and/or axle weight violations
42 imposed pursuant to a weigh in motion demonstration program imposing
43 monetary liability on the owner of a vehicle for failure of an operator
44 thereof to comply with such gross vehicle weight and/or axle weight
45 restrictions through the installation and operation of weigh in motion
46 violation monitoring systems, in accordance with article ten of this
47 chapter; or (vii) the registrant was liable for a violation of subdivi-
48 sion (b), (d), (f) or (g) of section eleven hundred eighty of this chap-
49 ter imposed pursuant to a demonstration program imposing monetary
50 liability on the owner of a vehicle for failure of an operator thereof
51 to comply with such posted maximum speed limits within a highway
52 construction or maintenance work area through the installation and oper-
53 ation of photo speed violation monitoring systems, in accordance with
54 article thirty of this chapter[]; or (viii) the registrant was liable
55 for a violation of bus operation-related traffic regulations as defined
56 by article twenty-four of this chapter imposed pursuant to a demon-

1 stration program imposing monetary liability on the owner of a vehicle
2 for failure of an operator thereof to comply with such bus operation-re-
3 lated traffic regulations through the installation and operation of bus
4 operation-related photo devices, in accordance with article twenty-four
5 of this chapter~~[7]~~; or (ix) the registrant was liable for a violation of
6 street cleaning parking rules as defined by article twenty-four of this
7 chapter imposed pursuant to a program imposing monetary liability on the
8 owner of a vehicle for failure of an operator thereof to comply with
9 such street cleaning parking rules through the installation and opera-
10 tion of street cleaning vehicle photo devices, in accordance with arti-
11 cle twenty-four of this chapter, the commissioner or their agent shall
12 deny the registration or renewal application until the applicant
13 provides proof from the court, traffic and parking violations agency or
14 administrative tribunal wherein the charges are pending that an appear-
15 ance or answer has been made or in the case of an administrative tribu-
16 nal that such applicant has complied with the rules and regulations of
17 said tribunal following entry of a final decision. Where an application
18 is denied pursuant to this section, the commissioner may, in their
19 discretion, deny a registration or renewal application to any other
20 person for the same vehicle and may deny a registration or renewal
21 application for any other motor vehicle registered in the name of the
22 applicant where the commissioner has determined that such registrant's
23 intent has been to evade the purposes of this subdivision and where the
24 commissioner has reasonable grounds to believe that such registration or
25 renewal will have the effect of defeating the purposes of this subdivi-
26 sion. Such denial shall only remain in effect as long as the summonses
27 remain unanswered, or in the case of an administrative tribunal, the
28 registrant fails to comply with the rules and regulations following
29 entry of a final decision.

30 § 9. Subdivision 1-a of section 1809 of the vehicle and traffic law,
31 as amended by section 8 of part N of chapter 58 of the laws of 2025, is
32 amended to read as follows:

33 1-a. Notwithstanding the provisions of subdivision one of this
34 section, the provisions of subdivision one of this section shall not
35 apply to an adjudication of liability of owners: (a) for violations of
36 subdivision (d) of section eleven hundred eleven of this chapter imposed
37 pursuant to a local law or ordinance imposing monetary liability on the
38 owner of a vehicle for failure of an operator thereof to comply with
39 traffic-control indications through the installation and operation of
40 traffic-control signal photo violation-monitoring systems, in accordance
41 with article twenty-four of this chapter; or (b) for violations of
42 subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty
43 of this chapter imposed pursuant to a demonstration program imposing
44 monetary liability on the owner of a vehicle for failure of an operator
45 thereof to comply with such posted maximum speed limits through the
46 installation and operation of photo speed violation monitoring systems,
47 in accordance with article thirty of this chapter; or (c) for violations
48 of bus lane restrictions as defined by article twenty-four of this chap-
49 ter imposed pursuant to a bus rapid transit program imposing monetary
50 liability on the owner of a vehicle for failure of an operator thereof
51 to comply with such bus lane restrictions through the installation and
52 operation of bus lane photo devices, in accordance with article twenty-
53 four of this chapter; or (d) for violations of toll collection regu-
54 lations imposed by certain public authorities pursuant to the law
55 authorizing such public authorities to impose monetary liability on the
56 owner of a vehicle for failure of an operator thereof to comply with

1 toll collection regulations of such public authorities through the
2 installation and operation of photo-monitoring systems, in accordance
3 with the provisions of section two thousand nine hundred eighty-five of
4 the public authorities law and sections sixteen-a, sixteen-b and
5 sixteen-c of chapter seven hundred seventy-four of the laws of nineteen
6 hundred fifty; or (e) for violations of section eleven hundred seventy-
7 four of this chapter when meeting a school bus marked and equipped as
8 provided in subdivisions twenty and twenty-one-c of section three
9 hundred seventy-five of this chapter imposed pursuant to a local law or
10 ordinance imposing monetary liability on the owner of a vehicle for
11 failure of an operator thereof to comply with school bus red visual
12 signals through the installation and operation of school bus photo
13 violation monitoring systems, in accordance with article twenty-nine of
14 this chapter; or (f) for violations of section three hundred eighty-five
15 of this chapter and the rules of the applicable covered agency or
16 covered authority as such terms are defined in article ten of this chap-
17 ter in relation to gross vehicle weight and/or axle weight violations
18 imposed pursuant to a weigh in motion demonstration program imposing
19 monetary liability on the owner of a vehicle for failure of an operator
20 thereof to comply with such gross vehicle weight and/or axle weight
21 restrictions through the installation and operation of weigh in motion
22 violation monitoring systems, in accordance with article ten of this
23 chapter; or (g) for violations of subdivision (b), (d), (f) or (g) of
24 section eleven hundred eighty of this chapter imposed pursuant to a
25 demonstration program imposing monetary liability on the owner of a
26 vehicle for failure of an operator thereof to comply with such posted
27 maximum speed limits within a highway construction or maintenance work
28 area through the installation and operation of photo speed violation
29 monitoring systems, in accordance with article thirty of this chapter;
30 or (h) for violations of bus operation-related traffic regulations as
31 defined by article twenty-four of this chapter imposed pursuant to a
32 demonstration program imposing monetary liability on the owner of a
33 vehicle for failure of an operator thereof to comply with such bus oper-
34 ation-related traffic regulations through the installation and operation
35 of bus operation-related photo devices, in accordance with article twen-
36 ty-four of this chapter; or (i) for violations of street cleaning park-
37 ing rules as defined by article twenty-four of this chapter imposed
38 pursuant to a program imposing monetary liability on the owner of a
39 vehicle for failure of an operator thereof to comply with such street
40 cleaning parking rules through the installation and operation of street
41 cleaning vehicle photo devices, in accordance with article twenty-four
42 of this chapter.

43 § 10. Subdivision 1 of section 1809-a of the vehicle and traffic law,
44 as amended by section 10 of part MM of chapter 56 of the laws of 2023,
45 is amended to read as follows:

46 1. The provisions of any other general or special law notwithstanding,
47 whenever, in a city having a population of one hundred thousand or more
48 according to the nineteen hundred eighty United States census,
49 proceedings in an administrative tribunal or a court result in a finding
50 of liability, or conviction for the violation of any statute, local law,
51 ordinance or rule involving the parking, stopping or standing of a motor
52 vehicle, except (a) an adjudication of liability of an owner for a
53 violation of bus operation-related traffic regulations as defined by
54 article twenty-four of this chapter imposed pursuant to a demonstration
55 program imposing monetary liability on the owner of a vehicle for fail-
56 ure of an operator thereof to comply with such bus operation-related

1 traffic regulations through the installation and operation of bus opera-
2 tion-related photo devices, in accordance with article twenty-four of
3 this chapter, or (b) an adjudication of liability of an owner for a
4 violation of street cleaning parking rules as defined by article twen-
5 ty-four of this chapter imposed pursuant to a program imposing monetary
6 liability on the owner of a vehicle for failure of an operator thereof
7 to comply with such street cleaning parking rules through the installa-
8 tion and operation of street cleaning vehicle photo devices, in accord-
9 ance with article twenty-four of this chapter, there shall be levied a
10 mandatory surcharge in addition to any other sentence, fine or penalty
11 otherwise permitted or required, in the amount of fifteen dollars. Such
12 surcharge shall not be deemed a monetary penalty for the purposes of
13 section two hundred thirty-seven of this chapter or section 19-203 of
14 the administrative code of the city of New York.

15 § 11. Subdivision 1 of section 1809-aa of the vehicle and traffic law,
16 as amended by section 11 of part MM of chapter 56 of the laws of 2023,
17 is amended to read as follows:

18 1. Notwithstanding any other provision of law, whenever proceedings in
19 an administrative tribunal or court result in a conviction for a
20 violation of section twelve hundred, twelve hundred one or twelve
21 hundred two of this chapter, except (a) an adjudication of liability of
22 an owner for a violation of bus operation-related traffic regulations as
23 defined by article twenty-four of this chapter imposed pursuant to a
24 demonstration program imposing monetary liability on the owner of a
25 vehicle for failure of an operator thereof to comply with such bus oper-
26 ation-related traffic regulations through the installation and operation
27 of bus operation-related photo devices, in accordance with article twen-
28 ty-four of this chapter, or (b) an adjudication of liability of an
29 owner for a violation of street cleaning parking rules as defined by
30 article twenty-four of this chapter imposed pursuant to a program
31 imposing monetary liability on the owner of a vehicle for failure
32 of an operator thereof to comply with such street cleaning parking rules
33 through the installation and operation of street cleaning vehicle photo
34 devices, in accordance with article twenty-four of this chapter, there
35 shall be levied a mandatory surcharge in addition to any other sentence,
36 fine or penalty otherwise permitted or required, in the amount of twen-
37 ty-five dollars.

38 § 12. Paragraph a of subdivision 1 of section 1809-e of the vehicle
39 and traffic law, as amended by section 9 of part N of chapter 58 of the
40 laws of 2025, is amended to read as follows:

41 a. Notwithstanding any other provision of law, whenever proceedings in
42 a court or an administrative tribunal of this state result in a
43 conviction for an offense under this chapter, except a conviction pursu-
44 ant to section eleven hundred ninety-two of this chapter, or for a traf-
45 fic infraction under this chapter, or a local law, ordinance, rule or
46 regulation adopted pursuant to this chapter, except: (i) a traffic
47 infraction involving standing, stopping, or parking or violations by
48 pedestrians or bicyclists; and (ii) an adjudication of liability of an
49 owner for a violation of subdivision (d) of section eleven hundred elev-
50 en of this chapter imposed pursuant to a local law or ordinance imposing
51 monetary liability on the owner of a vehicle for failure of an operator
52 thereof to comply with traffic-control indications through the installa-
53 tion and operation of traffic-control signal photo violation-monitoring
54 systems, in accordance with article twenty-four of this chapter; and
55 (iii) an adjudication of liability of an owner for a violation of subdivi-
56 sion (b), (c), (d), (f) or (g) of section eleven hundred eighty of

1 this chapter imposed pursuant to a demonstration program imposing monetary
2 liability on the owner of a vehicle for failure of an operator
3 thereof to comply with such posted maximum speed limits through the
4 installation and operation of photo speed violation monitoring systems,
5 in accordance with article thirty of this chapter; and (iv) an adjudication
6 of liability of an owner for a violation of bus lane restrictions
7 as defined by article twenty-four of this chapter imposed pursuant to a
8 bus rapid transit program imposing monetary liability on the owner of a
9 vehicle for failure of an operator thereof to comply with such bus lane
10 restrictions through the installation and operation of bus lane photo
11 devices, in accordance with article twenty-four of this chapter; and (v)
12 an adjudication of liability of an owner for a violation of toll
13 collection regulations imposed by certain public authorities pursuant to
14 the law authorizing such public authorities to impose monetary liability
15 on the owner of a vehicle for failure of an operator thereof to comply
16 with toll collection regulations of such public authorities through the
17 installation and operation of photo-monitoring systems, in accordance
18 with section two thousand nine hundred eighty-five of the public author-
19 ities law or sections sixteen-a, sixteen-b and sixteen-c of chapter
20 seven hundred seventy-four of the laws of nineteen hundred fifty; and
21 (vi) an adjudication of liability of an owner for a violation of section
22 eleven hundred seventy-four of this chapter when meeting a school bus
23 marked and equipped as provided in subdivisions twenty and twenty-one-c
24 of section three hundred seventy-five of this chapter imposed pursuant
25 to a local law or ordinance imposing monetary liability on the owner of
26 a vehicle for failure of an operator thereof to comply with school bus
27 red visual signals through the installation and operation of school bus
28 photo violation monitoring systems, in accordance with article twenty-
29 nine of this chapter; and (vii) an adjudication of liability of an owner
30 for a violation of section three hundred eighty-five of this chapter and
31 the rules of the applicable covered agency or covered authority as such
32 terms are defined in article ten of this chapter in relation to gross
33 vehicle weight and/or axle weight violations imposed pursuant to a weigh
34 in motion demonstration program imposing monetary liability on the owner
35 of a vehicle for failure of an operator thereof to comply with such
36 gross vehicle weight and/or axle weight restrictions through the instal-
37 lation and operation of weigh in motion violation monitoring systems, in
38 accordance with article ten of this chapter; and (viii) an adjudication
39 of liability of an owner for a violation of subdivision (b), (d), (f) or
40 (g) of section eleven hundred eighty of this chapter imposed pursuant to
41 a demonstration program imposing monetary liability on the owner of a
42 vehicle for failure of an operator thereof to comply with such posted
43 maximum speed limits within a highway construction or maintenance work
44 area through the installation and operation of photo speed violation
45 monitoring systems, in accordance with article thirty of this chapter;
46 and (ix) an adjudication of liability of an owner for a violation of bus
47 operation-related traffic regulations as defined by article twenty-four
48 of this chapter imposed pursuant to a demonstration program imposing
49 monetary liability on the owner of a vehicle for failure of an operator
50 thereof to comply with such bus operation-related traffic regulations
51 through the installation and operation of bus operation-related photo
52 devices, in accordance with article twenty-four of this chapter; and (x)
53 an adjudication of liability of an owner for a violation of street
54 cleaning parking rules as defined by article twenty-four of this chapter
55 imposed pursuant to a program imposing monetary liability on the owner
56 of a vehicle for failure of an operator thereof to comply with such

1 street cleaning parking rules through the installation and operation of
2 street cleaning vehicle photo devices, in accordance with article twen-
3 ty-four of this chapter, there shall be levied in addition to any
4 sentence, penalty or other surcharge required or permitted by law, an
5 additional surcharge of twenty-eight dollars.

6 § 13. Subdivision 2 of section 87 of the public officers law is
7 amended by adding a new paragraph (w) to read as follows:

8 (w) are photographs, microphotographs, videotape or other recorded
9 images prepared under authority of section eleven hundred eleven-j of
10 the vehicle and traffic law.

11 § 14. The purchase or lease of equipment for a demonstration program
12 established pursuant to section 1111-j of the vehicle and traffic law,
13 as added by section one of this act, shall be subject to the provisions
14 of section 103 of the general municipal law.

15 § 15. This act shall take effect on the one hundred eightieth day
16 after it shall have become a law; provided, however, that sections one,
17 thirteen and fourteen of this act shall expire July 1, 2032, when upon
18 such date the provisions of such sections shall be deemed repealed;
19 provided further, however, that:

20 (a) the amendments to subdivision 1 of section 1809-a of the vehicle
21 and traffic law made by section ten of this act shall not affect the
22 repeal of such section and shall be deemed repealed therewith; and

23 (b) effective immediately, the addition, amendment and/or repeal of
24 any rule or regulation necessary for the implementation of section one
25 of this act on its effective date are authorized to be made and
26 completed on or before such effective date.